

UNITED STATES DISTRICT COURT
EASTERN DISTRICT OF NEW YORK

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WILLIS KINARD,

Plaintiff,

-against-

**COMPLAINT AND DEMAND
FOR A JURY TRIAL**

Index No. 15-CV-6995

The CITY OF NEW YORK; New York City
Police Department Sergeant ("Sgt.") STEVEN
ROSADO, Shield No. 228, P.O. HAILYN
OLIVARES, Shield No. 16967, and P.O. JOHN
DOE 1-3 (the name John Doe being fictitious, as
the true names and shield numbers are not presently
known), in their individual capacities,

Defendants.
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Plaintiff Willis Kinard, by his attorney Mark C. Taylor and Gillian Cassell-Stiga of
Rankin & Taylor, PLLC, as and for his complaint, does hereby state and allege:

PRELIMINARY STATEMENT

1. This is a civil rights action brought to vindicate the plaintiff's rights under the Fourth and Fourteenth Amendments of the Constitution of the United States, through the Civil Rights Act of 1871, amended and codified as 42 U.S.C. § 1983.
2. Plaintiff Willis Kinard's rights were violated when he was arrested and subsequently prosecuted without cause.
3. Mr. Kinard seeks an award of compensatory and punitive damages and attorneys' fees.

JURISDICTION AND VENUE

4. This Court has subject matter jurisdiction over federal claims pursuant to 28 U.S.C. §§ 1331, 1343(a) (3-4). This action is brought pursuant to 42 U.S.C. §§ 1983 and 1988 for violations of the Fourth and Fourteenth Amendments to the Constitution of the United States.
5. Venue is proper pursuant to 28 U.S.C. § 1391(a)(2) in that Mr. Kinard' claim arose in the Eastern District of New York.
6. An award of costs and attorneys' fees is authorized pursuant to 42 U.S.C. § 1988.

PARTIES

7. Plaintiff Willis Kinard is, and was at all times relevant to this action, a resident of the State of New York and the County of Richmond.
8. Defendant, The City of New York ("City"), is a municipal entity created and authorized under the laws of the State of New York. It is authorized by law to maintain a police department, which acts as its agent in the area of law enforcement and for which it is ultimately responsible. The City assumes the risks incidental to the maintenance of a police force and the employment of police officers as said risks attach to the public consumers of the services provided by the NYPD.
9. Defendant, New York City Police Department Sergeant, Sgt. Steven Rosado ("Rosado") and P.O. Hailyn Olivares ("Olivares"), were at all times relevant herein, officers, employees and agents of the NYPD.
10. The true name and shield number of defendants P.O. John Doe 1-2 is not presently known.¹ However, defendants are employees or agent of the NYCDOC. Accordingly, said defendants are entitled to representation in this action by the New York City Law Department ("Law Department") upon their request, pursuant to N.Y. G.M.L. § 50-k. The Law Department,

¹ By identifying said officer as "John Doe," plaintiff is making no representations as to the gender of said officer.

then, is hereby put on notice (a) that plaintiff intends to name said officers as defendants in an amended pleading once the true names and shield numbers of said defendants become known to plaintiff and (b) that the Law Department should immediately begin preparing their defense in this action.

11. At all times relevant herein, defendant police officers were acting under color of state law in the course and scope of their duties and functions as agents, servants, employees and officers of the NYPD, and otherwise performed and engaged in conduct incidental to the performance of their lawful functions in the course of their duties. They were acting for and on behalf of the NYPD at all times relevant herein, with the power and authority vested in them as officers, agents and employees of the NYPD and incidental to the lawful pursuit of their duties as officers, employees and agents of the NYPD.
12. The defendants' acts hereafter complained of were carried out intentionally, recklessly, with malice, and in gross disregard of Mr. Kinard's rights.

STATEMENT OF FACTS

13. The events herein complained of occurred primarily around 1:52 p.m. on July 18, 2013 in the vicinity of 43rd Street and 7th Avenue, in the County of Kings, in the City and State of New York.
14. Mr. Kinard was enjoying an afternoon with friends at the Sunset Park Community Pool, on the afternoon of July 18, 2013.
15. A lifeguard instructed Mr. Kinard's friend not to dive into the pool. At that time, P.O. Olivares, approached Mr. Kinard's friend.
16. Mr. Kinard decided to leave.
17. P.O. John Doe 1 and P.O. John Doe 2 joined P.O. Olivares from another area of the pool.

18. P.O. Olivares threatened Mr. Kindard and his friends while they attempted to leave.
19. Additional officers arrived.
20. P.O. John Doe 3, a plainclothes officer, placed Mr. Kinard under arrest. Mr. Kindard did not resist the arrest.
21. Sgt. Rosado, under penalty of perjury, made false statements on the accusatory instrument against Mr. Kinard. In sum and substance, Sgt. Rosado accused Mr. Kinard of failing to follow P.O. Olivares' orders to stop running around the pool and diving into the pool and of resisting arrest.
22. Sgt. Rosado arrested and prosecuted Mr. Kinard without a legal basis.
23. P.O. Olivares and John Doe 1-3 acted in concert with Sgt. Rosado to commit the tortious acts alleged above.
24. Mr. Kinard was in custody until being released on July 19, 2013.
25. Mr. Kinard appeared in Criminal Court of the City of New York, County of Kings, approximately 16 times.
26. All charges against Mr. Kinard were dismissed on or before December 8, 2014.

**FIRST CLAIM
DEPRIVATION OF RIGHTS
UNDER THE UNITED STATES CONSTITUTION THROUGH 42 U.S.C. § 1983
(Against Individual Defendants)**

27. Mr. Kinard incorporates by reference the allegations set forth in all preceding paragraphs as if fully set forth herein.
28. The individual defendants, under color of state law, subjected Mr. Kinard to the foregoing acts and omissions, thereby depriving Mr. Kinard of his rights, privileges and immunities secured by the Fourth and Fourteenth Amendments to the United States Constitution, including, without limitation, deprivation of the following constitutional rights: (a) freedom

from unreasonable seizure of his person; (b) freedom from arrest without probable cause; (c) freedom from false imprisonment; (d) freedom from malicious prosecution by the police; (e) freedom from having police officers fabricate evidence against him; (f) abuse of process; and (g) failure to intervene.

29. Individual defendants' deprivation of Mr. Kinard constitutional rights resulted in the deprivation of his liberty, psychological and emotional injury, humiliation, costs and expenses, and loss of income.

SECOND CLAIM FOR RELIEF
LIABILITY OF THE CITY OF NEW YORK FOR CONSTITUTIONAL VIOLATIONS
(Against the City of New York)

30. Plaintiff incorporates by reference the allegations set forth in all preceding paragraphs as if fully set forth herein.
31. At all times material to this complaint, defendant City had de facto policies, practices, customs and usages which were a direct and proximate cause of the unconstitutional conduct alleged herein.
32. At all times material to this complaint, defendant City failed to properly train, screen, supervise, or discipline its employees and police officers, including defendants Sgt. Rosado, P.O. Olivares, and P.O. John Doe 1-3, and failed to inform the individual defendants' supervisors of their need to train, screen, supervise or discipline the individual defendants.
33. The policies, practices, customs, and usages, and the failure to properly train, screen, supervise, or discipline, were a direct and proximate cause of the unconstitutional conduct alleged herein, causing injury and damage in violation of plaintiff's constitutional rights as guaranteed under 42 U.S.C. § 1983 and the United States Constitution, including its Fourth and Fourteenth Amendments.

34. As a result of the foregoing, plaintiff was deprived of liberty, suffered emotional distress, humiliation, costs and expenses, and was otherwise damaged and injured.

JURY DEMAND

35. Mr. Kinard demands a trial by jury in this action on each and every one of his damage claims.

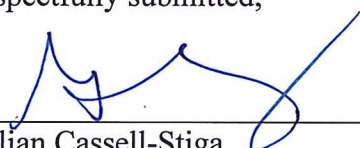
WHEREFORE Mr. Kinard demands judgment against the defendants individually and jointly and prays for relief as follows:

- a. That he be compensated for violation of his constitutional rights, pain, suffering, mental anguish, and humiliation; and
- b. That he be awarded punitive damages against the individual defendant; and
- c. That he be compensated for attorneys' fees and the costs and disbursements of this action; and
- d. For such other further and different relief as to the Court may seem just and proper.

Dated: New York, New York
December 7, 2015

Respectfully submitted,

By:



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